

Dev Saran v. State of U.P. And 4 Others

High Court of Judicature at Allahabad · Division Bench · 22 September 2020 · Writ - C No. 12768 of 2020 · Writ - C No. 12768 of 2020 · **Writ disposed; petitioner relegated to Section 127 appeal.**

HEADNOTE

Where a final assessment of electricity dues has been made, the consumer has a statutory appeal under Section 127 of the Electricity Act, 2003. The High Court disposed of the writ with liberty to avail that remedy and did not examine the assessment or the recovery on merits.

FACTUAL SUMMARY

Dev Saran filed a writ in the Allahabad High Court over electricity dues. On 31 August 2020 the Division Bench passed the matter over because counsel could not identify the provision for the provisional assessment or for a fresh final assessment bill, and directed service on counsel for Purvanchal Vidyut Vitaran Nigam Ltd. On 22 September 2020 the licensee produced a 31 December 2019 letter from the Executive Engineer, Electricity Distribution Division-II, Fatahan, Mirzapur, seeking recovery of a final assessment of Rs.1,17,804 through the revenue department.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to statutory appeal against final assessment

HOLDING

It not being in dispute that an appeal under Section 127 of the Electricity Act, 2003 lies against a final assessment order, the writ petition challenging electricity dues and recovery of that assessment is disposed of with liberty to the consumer to avail the statutory appeal. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

The Court treated the Executive Engineer's recovery letter as proceeding on a final assessment and, the availability of a Section 127 appeal being undisputed, closed the writ with liberty to appeal. ¶ 1

alternative-remedy-relegation-section-127

The writ was not decided on the correctness of the assessment or the recovery; the consumer was relegated to the statutory appeal under Section 127. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE FINAL ASSESSMENT OF RS.1,17,804

The Court did not examine whether the assessment was correctly made. ¶ 1

NOT DECIDED — STATUTORY BASIS OF THE PROVISIONAL ASSESSMENT AND ENTITLEMENT TO A FRESH FINAL ASSESSMENT BILL

Counsel could not identify the governing provisions on 31 August 2020; the disposing order did not resolve that issue.

¶ 1